

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANTHONY METCALF SCHWARTZ,

Petitioner

VS.

GRACE MARIA SCHWARTZ,

Respondent

) Case Number: FDI-18-790180

) Hearing Date: August 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, SPOUSAL OR PARTNER
SUPPORT, ATTORNEY FEES AND COSTS, PROPERTY CONTROL, REMOVE THE PETITIONER
FROM THE APARTMENT, CHARACTERIZE COMM

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Anthony Metcalf Schwartz and Respondent Grace Maria Schwartz.
- 2) On 7/9/26, Respondent filed an ex parte Request for Order seeking enforcement of spousal support, exclusive use and control of the community leasehold and related relief, and attorney's fees and costs.
- 3) On 7/9/26, the Court denied Respondent's request for emergency relief and set the matter for hearing on 8/18/26. The Court ordered Respondent to personally serve Petitioner with all documents filed with the Request for Order (see FL-300).
- 4) There is no Proof of Service on file indicating Petitioner was personally served with Respondent's 7/9/25 Request for Order.
- 5) Petitioner did not file a Responsive Declaration.

B. Findings and Order

- 1) This matter is **continued to 10/22/26 at 9:00 AM in Dept. 403** to permit Respondent to effectuate proper service.
- 2) At least 16 Court days prior to the next hearing date, Respondent shall serve on Petitioner the (a) Request for Order, (b) Continuance Order contained herein, and (c) Tentative Ruling Instructions using a service method authorized by the Code of Civil Procedure.
- 3) At least 9 Court days prior to the next hearing date, Petitioner may file and serve a Responsive Declaration.
- 4) At least 5 Court days prior to the next hearing date, Respondent may file and serve a Reply Declaration.
- 5) The Court will prepare the Findings and Order After Hearing.